



PAKISTAN ENGINEERING COUNCIL (AMENDMENT) ORDINANCE, 2002

Last Updated: 2002-12-01

Contents

PREAMBLE

- | | |
|---|---|
| 1 | SHORT TITLE AND COMMENCEMENT |
| 2 | INSERTION OF NEW SECTION 29A, ACT V OF 1976 |

PAKISTAN ENGINEERING COUNCIL
(AMENDMENT) ORDINANCE, 2002

ORDINANCE CXXIX OF 2002

An Ordinance further to amend the Pakistan Engineering Council Act, 1976

WHEREAS it is expedient further to amend the Pakistan Engineering Council Act, 1976 (V of 1976); for the purposes hereinafter appearing;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the Fourteenth day of October, 1999, and the Provisional Constitution Order No.1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make Wand promulgate the following Ordinance:-

1. Short title and commencement.---This Ordinance may be called the Pakistan Engineering Council (Amendment) Ordinance, 2002.

(2) It shall come into force at once.

2. Insertion of new section 29A, Act V of 1976.---In the Pakistan Engineering Council Act, 1976 (V of 1976), after section 29, the following new section shall be inserted, namely:-

“29-A. Supersession of Council.---(1) If at any time it appears to the Federal Government that the Council has failed to exercise or has exceeded or abused any of the powers conferred upon it by or under this Act, the Federal Government may, if it is satisfied that such failure, excess or abuse has adversely affected- the efficient conduct of the affairs of the Council or the achievement of the objects of this Act, by notification in the official Gazette, supersede the Council for a period of two years and may, by a like notification extend the period of supersession for a further period of one year.

(2) Upon the supersession of the Council under subsection (1)--

(a) the persons holding office as Chairman, Vice-Chairman and members of the Council shall cease to hold office; and

(b) all powers and functions of the Council shall, during the period of supersession, be exercised and performed by such person or authority as the Federal

Government may appoint, in this behalf, as if such person or authority were the Council.

(3) The Council shall be reconstituted in accordance with the provisions of this Act for the exercise and performance of its powers and functions on the expiry of the period specified in the notification under subsection (1). "
